

Notice of dispute — Stage 1

Clause 1.11.2(a), Certified Agreement (No. 12) 2025

Cory Lea Shepherd

AO3, Switchboard Services, Logan Hospital, Metro South Health

To: Ms Chloe Taylor, Manager, Switchboard Services
(immediate supervisor, for the purposes of clause 1.11.2(a))

Cc: Mr Scott Hughes, Director, Corporate Services
LBH.HRTeam1@health.qld.gov.au
lbh_injurymanagement@health.qld.gov.au
Ms Emily Petering, Industrial Officer, Together Queensland
Mr Heath Moran, Together Queensland

Date: [SEND DATE]

Subject: Notice of dispute under clause 1.11 — application of the certified agreement to my attendance, roster, leave and pay from 26 June 2026

1. WHAT THIS NOTICE IS

This notice informs you, as my immediate supervisor, of the existence of a dispute, in accordance with clause 1.11.2(a) of the certified agreement.

Clause 1.11.2 provides that where there is "any disagreement between the parties as to the interpretation, application or implementation of this Agreement", the procedure in that clause applies. Clause 1.11.1 records that the objectives are "the avoidance and resolution of any disputes ... by measures based on the provision of information and explanation, consultation, co-operation and negotiation", and that "the emphasis will be on finding a resolution at the earliest possible stage in the process".

That is what I am seeking. I would prefer this resolved at Stage 1 and I am available to discuss it at any time.

2. THE SUBJECT MATTER OF THE DISPUTE

The dispute concerns the application and implementation of the certified agreement to my employment from 26 June 2026, in the following respects.

2.1 ATTENDANCE AND ROSTERED DUTY

I have not been permitted to attend my rostered shifts since 3 July 2026. On 2 July 2026 I was advised that the Health Service was "unable to facilitate" my return until a completed Employee Capacity Certificate was received, and asked to "wait for my advice to when your next returning shift will be". I provided the completed Employee Capabilities Checklist on 3 July 2026 at 2:32pm. At 3:18pm the same day I asked to be told whether I should attend. I have not received an answer to that question.

The condition on which the advice of 2 July 2026 was expressed has therefore been satisfied. I have asked which instrument is relied on to maintain the position since, and have not received an answer.

2.2 LEAVE

Since 3 July 2026 my accrued leave has been debited, and from 13 July 2026 I have been recorded as absent without pay, in respect of a period in which I have been willing and available to work and have said so in writing. I dispute the application of the leave provisions of the certified agreement to that period.

2.3 ROSTER

I dispute the position, so far as it is taken, that my rostered pattern over the preceding twelve months is inconsistent with the requirements of my role. That pattern was set by the Health Service and worked without any concern being raised with me.

2.4 WORK HEALTH AND SAFETY MATTERS RAISED

Clause 7.1.11 provides that "the parties commit to ensure that appropriate feedback is provided to employees who raise workplace health and safety matters". Clause 7.1.5 records the parties' agreement to address, among other issues, "management of ill or injured employees", "psychosocial issues and implementation of Managing the risk of psychosocial hazards at work Code of Practice 2022", and "injured workers to have the opportunity to be re-trained in

alternative areas/departments". I have raised matters within each of those descriptions and have not received feedback on them.

2.5 PSYCHOSOCIAL RISK ASSESSMENT

Clause 7.2 provides for psychosocial risk assessments conducted using the resources in the Managing the risk of psychosocial hazards at work Code of Practice 2022, "in consultation with workers and Health and Safety Representatives". I have asked for a workplace risk assessment and none has been provided.

2.6 THE PROCESS ITSELF

Since 26 June 2026 I have been asked to provide medical information about myself, held out of my rostered shifts, had my accrued leave debited and then been recorded as absent without pay, and told that a decision will be made regarding my ability to perform my role.

I do not know what this process is called.

I have asked which instrument is relied on and I have not been told. I am not raising that here as a complaint about anyone. I raise it because I cannot follow a process properly, or exercise whatever rights attach to it, without knowing what it is. If it has a name, a governing provision and a set of steps, I would like to be told them so that I can take part in it correctly. If it does not, that is also something I need to know.

I note that the Health Service's Workplace rehabilitation standard (QH-IMP-401-5) requires that a worker be informed of "the appropriate dispute resolution process to follow in such cases where the worker does not agree with elements of a proposed workplace rehabilitation plan or suitable duties program". I have not been informed of any process.

Clause 1.11.1 records that the objectives of this procedure are to be achieved "by measures based on the provision of information and explanation". This is a request for information and explanation, and it is the first one I make.

3. THE STATUS QUO WHILE THE PROCEDURE IS FOLLOWED

Clause 1.11.4 provides:

"Subject to legislation, while the dispute procedure is being followed, normal work is to continue except in the case of a genuine safety issue. The status quo existing before the emergence of a dispute is to continue whilst the procedure is being followed. No party shall be prejudiced as to the final settlement by the continuation of work."

The status quo before the emergence of this dispute was that I was rostered and working. I ask that I be returned to my rostered shifts while the procedure is followed, in accordance with that clause. I am not asking for anything to be decided in my favour by doing so; clause 1.11.4 expressly provides that no party is prejudiced as to the final settlement by the continuation of work.

I anticipate the Health Service may say that the exception for "a genuine safety issue" applies. If that position is taken, I ask that it be put in writing and that the following be identified, so that it can be discussed at Stage 1:

- (a) the hazard identified, and the assessment on which it was identified;
- (b) the control measures considered, in the order required by section 36 of the Work Health and Safety Regulation 2011, and why each was rejected; and
- (c) why the restrictions certified on the Employee Capabilities Checklist of 3 July 2026 do not address it.

I record that I hold a current certificate addressing my capacity, that I have proposed controls in writing, and that I have asked for the workplace assessment which would resolve the question.

4. WHAT I ASK AT STAGE 1

- (a) That I be told what the process I have been subject to since 26 June 2026 is called, and the provision of the Act, directive, certified agreement or policy under which it is being conducted.
- (b) That I be returned to my rostered shifts while this procedure is followed, in accordance with clause 1.11.4; or, if that is not agreed, that the instrument relied on to maintain the position be identified in writing.
- (c) That the period from 3 July 2026 be treated as paid, and the leave debited since that date re-credited, on the basis that I have been willing and available to work throughout.
- (d) That the roster and payroll record for the twelve months preceding 3 July 2026 be provided to me, so that the pattern in fact worked is established from the Health Service's own records rather than from my estimate.

- (e) That feedback be provided on the work health and safety matters I have raised, in accordance with clause 7.1.11.
- (f) That a psychosocial risk assessment of the workplace be conducted in accordance with clause 7.2.

5. A MATTER I MUST RAISE ABOUT STAGE 1 ITSELF

Clause 1.11.2(a) requires that I inform my immediate supervisor. I have done so by this notice, so that there is no question that Stage 1 has been commenced.

I should record, however, that part of the subject matter of this dispute is the advice of 2 July 2026 and the reporting arrangements within Corporate Services. I have separately asked the Health Service to identify the delegate for decisions concerning my attendance and return to duty, and whether any conflict of interest has been identified and managed. I make no allegation against any individual, and clause 1.2 of the Code of Conduct for the Queensland Public Service records that a conflict of interest is not wrongdoing in itself.

For that reason I ask the Health Service to nominate an appropriate officer to conduct the Stage 1 discussion. If it prefers that the discussion proceed with my immediate supervisor, I do not object and will attend. I raise it so that it is dealt with now rather than later, and so that no Stage 1 discussion is later said to have been conducted by the wrong person.

I ask to have a support person and my union representative present at any discussion.

6. TIME

Clause 1.11.2(a) provides that "Stage 1 discussions should take place within 24 hours, and the procedure should not extend beyond seven days". Clause 1.11.2(b) provides that if the dispute remains unresolved, it is referred to the appropriate management representative, who "shall arrange a conference of the parties", and that this process "should not extend beyond seven days". Clause 1.11.5 provides that "no party shall act in a manner unreasonably or intentionally delay the timely resolution of a dispute".

I am available for a Stage 1 discussion at any time, including today.

7. WHAT THIS NOTICE DOES NOT DO

- (a) This notice is separate from my request of the same date under clause 10.3.2 for a change in the way I work. That request is to be decided under clause 10.3.4 to 10.3.6 and is not part of this dispute.
- (b) This notice is separate from my response of the same date to the Request for Medical Information of 31 July 2026.
- (c) Clause 1.12.2 provides that the employee grievance procedure "does not limit or affect any other dispute resolution provisions contained in this Agreement". Nothing in this notice limits any other avenue, and nothing in it is a waiver of any entitlement.
- (d) This notice makes no allegation against any individual and asks for no finding to be made about anyone. It asks for the agreement to be applied.

I confirm again that I am engaging with this process and want to return to work.

Yours sincerely,

Cory Lea Shepherd

AO3, Switchboard Services, Logan Hospital

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